

24PSCV04253 24PSCV04253

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-16

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Case Number: 24PSCV04253 Hearing Date: July 16, 2026 Dept: H

Garnica v. Curry, Case

No. 24PSCV04253

ORDER ON

MOTIONS TO COMPEL

1. Defendant Jerrold Joseph Curry's Motion to Compel Responses to Form Interrogatories, Set One is Form Interrogatories, Set One is GRANTED. Plaintiff is ordered to provide verified responses, without objections, to Defendant's Form Interrogatories, Set One, within 20 days from the date of the notice of ruling. Sanctions are awarded in the reduced amount of \$510.00 and are payable within 20 days from the date of the notice of ruling.

2. Defendant Jerrold Joseph Curry's Motion to Compel Responses to Special Interrogatories, Set One is GRANTED. Plaintiff is ordered to provide verified responses, without objections, to Defendant's Special Interrogatories, Set One, within 20 days from the date of the notice of ruling. Sanctions are awarded in the reduced amount of \$510.00 and are payable within 20 days from the date of the notice of ruling.

3. Defendant Jerrold Joseph Curry's Motion to Compel Responses to Requests for Production of Documents, Set One is GRANTED. Plaintiff is ordered to provide verified responses, without objections, to Defendant's Requests for Production of Documents, Set One, within 20 days from the date of the notice of ruling. Sanctions are awarded in the reduced amount of \$510.00 and are payable within 20 days from the date of the notice of ruling.

Background

Plaintiff

Laura Garnica ("Plaintiff") alleges that she sustained injuries and damages in a December 31, 2022 motor vehicle accident at the intersection of Mission Boulevard and Reservoir Street in Pomona.

On

December 12, 2024, Plaintiff filed a complaint, asserting a motor vehicle cause of action against Jerold Joseph Curry and Does 1-10.

On May

20, 2025, Plaintiff filed an "Amendment to Complaint," wherein Plaintiff corrected the name of "Jerold Joseph Curry" to "Jerold Joseph Curry aka Jerrold Joseph Curry" ("Defendant").

On

August 21, 2025, Defendant's default was entered. On January 22, 2026, an "Order on Motion to Set Aside Entry of Default" was entered.

A Case

Management Conference is set for July 16, 2026.

1.

Motion to Compel Re: Form Interrogatories, Set One

Legal Standard

A response to interrogatories is due within 30 days after service. (Code Civ. Proc., § 2030.260, subd. (a).) "If a party to whom interrogatories are directed fails to serve a timely response, . . . [t]he party propounding the interrogatories may move for an order compelling response to the interrogatories." (Code Civ. Proc., § 2030.290, subd. (b).)

"The court shall impose a monetary sanction .

. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust" (Code Civ.

Proc., § 2030.290, subd. (c).)

Discussion

Defendant

moves the Court for an order compelling Plaintiff to provide responses, without objections, to Defendant's Form Interrogatories, Set One. Defendant also seeks sanctions against Plaintiff and her counsel in the amount of \$1,111.65.

Defendant's

counsel Eric Anvari ("Anvari") represents, and/or the accompanying exhibits reflect, as follows:

On

January 27, 2026, the subject discovery was served. (Anvari Decl., ¶ 5, Exh. 1.) Responses were due on or before March 2, 2026. (Id., ¶ 6.) On March 6, 2026 at 12:05 p.m., Plaintiff's counsel's legal assistant Grace Park emailed Anvari and asked for an extension to March 27, 2026 to provide discovery responses. (Id., ¶ 7, Exh. 2.) Anvari granted this request at 1:35 p.m., but advised that responses should be free of objections on the basis that they were overdue. (Id.) Counsel thereafter exchanged a flurry of emails, during which time they disagreed over whether Anvari had retracted the extension. (Id., ¶¶ 8 and 9, Exhs. 3 and 4.)

No

responses have been received from Plaintiff, as of the March 30, 2026 motion filing date. (Id., ¶ 10.)

Plaintiff,

in response, advises that he served objection-free responses to the subject discovery responses on or about June 18, 2026 and verifications on June 22, 2026, such that the motion is moot. (Feldman Decl., 4:12-14.) Plaintiff also advises that on June 22, 2026 he offered to pay \$180.00 in filing fees as well. (Id.)

Defendant,

in reply, concedes that Plaintiff has provided verified responses and has offered \$180.00 in filing fees. Defendant asserts, however, that the responses contain general and blanket objections incorporated into each response and are otherwise insufficient substantively in numerous ways.

Defendant's

first assertion is well-taken. The Court has reviewed Plaintiff's responses, which are attached as Exhibit 2 to Anvari's reply declaration. Said responses contain a "Prefatory Statement," which includes various objections which are "incorporate[d] by reference. . . into each and every response hereinafter." This is improper. Defendant's second assertion is the subject of a motion to compel further responses, not initial responses.

The motion is granted. Plaintiff is ordered to provide verified responses, without objections, to Defendant's Form Interrogatories, Set One, within 20 days from the date of the notice of ruling.

Sanctions

Defendant seeks sanctions against Plaintiff in the amount of \$1,111.65 [calculated as follows: 2 hours preparing motion, plus 0.5 hours reviewing opposition, plus 1 hour preparing reply at \$300.00/hour, plus \$61.65 filing fee].

Utilizing a Lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$510.00 (i.e., 1.5 hours attorney time at \$300.00/hour, plus \$60.00 filing fee). Sanctions are payable within 20 days from the date of the notice of ruling.

2.

Motion to Compel Re: Special Interrogatories, Set One

Legal Standard

See Motion #1.

Discussion

Defendant

moves the Court for an order compelling Plaintiff to provide responses, without objections, to Defendant's Special Interrogatories, Set One. Defendant also seeks sanctions against Plaintiff and her counsel in the amount of \$1,111.65.

See
synopsis of Motion #1.

Again, the
Court has reviewed Plaintiff's responses, which are attached as Exhibit 2 to Anvari's reply declaration. Said responses contain a "Prefatory Statement," which includes various objections which are "incorporate[d] by reference. . . into each and every response hereinafter." This is improper. Defendant's argument regarding the sufficiency of the responses is the subject of a motion to compel further responses, not initial responses.

The motion is granted. Plaintiff is
ordered to provide verified responses, without objections, to Defendant's Special Interrogatories, Set One, within 20
days from the date of the notice of ruling.

Sanctions

Defendant
seeks sanctions against Plaintiff in the
amount of \$1,111.65 [calculated as follows: 2 hours preparing motion, plus 0.5 hours reviewing opposition, plus 1 hour preparing reply at \$300.00/hour, plus \$61.65 filing fee].

Utilizing
a Lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$510.00 (i.e., 1.5 hours attorney time at \$300.00/hour, plus \$60.00 filing fee). Sanctions are payable within 20 days from the date of the notice of ruling.

3.
Motion to Compel Re: Requests for Production of Documents, Set One

Legal Standard

A

response to a request for production of documents is due within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) “If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, . . . [t]he party making the demand may move for an order compelling response to the demand.” (Code Civ. Proc., § 2031.300, subd. (b).)

“[T]he

court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300, subd. (c).)

Discussion

Defendant

moves the Court for an order compelling Plaintiff to provide responses, without objections, to Defendant’s Request for Production of Documents, Set One. Defendant also seeks sanctions against Plaintiff and her counsel in the amount of \$1,111.65.

See

synopsis of Motion #1.

Again, the

Court has reviewed Plaintiff’s responses, which are attached as Exhibit 2 to Anvari’s reply declaration. Said responses contain a “Preliminary Statement,” which reads, in relevant part, as follows: “If any information within the scope of the attorney-client privilege or the attorney work-product doctrine are inadvertently disclosed in this response, Responding Party has not done so intentionally, and reserves the right to assert these privileges at any time in these proceedings. . . . In addition, all evidentiary objections are reserved and no waiver of any objections is to be implied with this response.” This is improper. Defendant’s argument regarding the sufficiency of the responses is the subject of a motion to compel further responses, not initial responses.

The motion is granted. Plaintiff is

ordered to provide verified responses, without objections, to Defendant's Request for Production of Documents, Set One, within 20 days from the date of the notice of ruling.

Sanctions

Defendant

seeks sanctions against Plaintiff in the amount of \$1,111.65 [calculated as follows: 2 hours preparing motion, plus 0.5 hours reviewing opposition, plus 1 hour preparing reply at \$300.00/hour, plus \$61.65 filing fee].

Utilizing

a Lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$510.00 (i.e., 1.5 hours attorney time at \$300.00/hour, plus \$60.00 filing fee). Sanctions are payable within 20 days from the date of the notice of ruling.